

21SMCV01343 21SMCV01343

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-17

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Case Number: 21SMCV01343 Hearing Date: July 17, 2026 Dept: M

CASE NAME: Khorsandi v. Mitchell,
et al.

CASE NO.: 21SMCV01343

MOTION: Motion to Dismiss

HEARING DATE: 7/17/2026

Legal

Standard

Code of Civil Procedure ("CCP")

section 583.130 provides that it "is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter."

CCP section 583.210 provides: "(a)

The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed. [¶] (b)

Proof of service of the summons shall be filed within 60 days after the time the summons and complaint must be served upon a defendant. CCP § 583.250 provides that “(a) [i]f service is not made in an action within the time prescribed in this article:

(1) The action shall not be further prosecuted, and no further proceedings shall be held in the action.

(2) The action shall be dismissed by the court on its own motion or on motion of any person interested in the action, whether named as a party or not, after notice to the parties.

(b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.

CCP section 582.220 provides some exceptions for the three-year service rule, including where the parties have stipulated in writing for an extension and where the defendants have generally appeared in the action.

ANALYSIS

Specially appearing Cross-Defendants

Farhad Novian and Matthew Novian move for dismissal from this action because Cross-Complainants Floyd Mitchell and Keith Turkowski failed to serve Cross-Defendants within the three-year time limit prescribed by CCP section 583.210(a).

It is undisputed that

Cross-Complainants have not served the Novian Cross-Defendants with the Cross-Complaint. (F. Novian Decl., ¶ 2; M. Novian Decl., ¶ 2.) No proof of service of summons has ever been filed for either Cross-Defendant. The Novians Cross-Defendants have not entered into a written stipulation extending the time to serve. (F. Novian Decl., ¶¶ 3-5; M. Novian Decl., ¶¶ 3-5.) The record in this action does not show that Cross-Defendants have taken any action that constitutes a general appearance. Dismissal is therefore mandatory.

Cross-Complainants assert that they attempted service via a voluntary acknowledgement receipt pursuant to CCP

section 415.30. Cross-Complainants, however, do not show that this mere attempt at service would constitute valid service of summons. (See also *Tejada v. Blas* (1987) 196 Cal. App. 3d 1335, 1340 [generally, uncooperative conduct by a defendant does not justify inaction on the part of a plaintiff].)

Cross-Complainants also contend that Cross-Defendants have made a general appearance in this action by retaining counsel and filing this motion. The plain language of section 583.220(b) forecloses this position. Cross-Defendants' filing of this motion does not show that service has otherwise occurred.

Accordingly, the motion is GRANTED.